

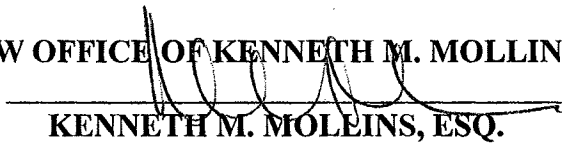
SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
JAMES WELCOME,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, KINGS COUNTY DISTRICT  
ATTORNEYS OFFICE, NEW YORK CITY  
POLICE OFFICER "SCOTT, NEW YORK CITY  
POLICE OFFICER "AHMED" and NEW YORK CITY  
POLICE OFFICERS "JOHN DOES 1-15", true names  
being unknown at this time,Defendants.  
-----X**TO THE ABOVE NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after service is complete if the Summons is not personally delivered to you in the State of New York); in the case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Hauppauge, New York  
December 9, 2020**LAW OFFICE OF KENNETH M. MOLLINS, P.C.**By: **KENNETH M. MOLEINS, ESQ.**

Attorneys for Plaintiff

**JAMES WELCOME**

1393 Veterans Memorial Highway

Suite 101S

Hauppauge, New York 11788

(631) 608-4100

File Number: 20200605

Index No:

Date Purchased:

Plaintiff designates

**KINGS COUNTY**

as Place of Trial

Basis of Venue:

Plaintiffs' residence

**SUMMONS**

Plaintiff resides at:

Brooklyn, NY 11236

**Defendants' addresses:****CITY OF NEW YORK**

Office of the New York City Comptroller

1 Center Street, Room 1225

New York, NY 10007

**NEW YORK CITY POLICE DEPARTMENT**

Office of the New York City Comptroller

1 Center Street, Room 1225

New York, NY 10007

**KINGS COUNTY DISTRICT ATTORNEYS OFFICE**

350 Jay Street

Brooklyn, New York 11201

**NEW YORK CITY POLICE OFFICER "SCOTT"**

Office of the New York City Comptroller

1 Center Street, Room 1225

New York, NY 10007

**NEW YORK CITY POLICE OFFICER "AHMED"**

Office of the New York City Comptroller

1 Center Street, Room 1225

New York, NY 10007

**NEW YORK CITY POLICE OFFICERS**

"JOHN DOES 1-5", true names being unknown at this time

Office of the New York City Comptroller

1 Center Street, Room 1225

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
JAMES WELCOME,

Index No.:

Plaintiff,

**VERIFIED COMPLAINT**

-against-

CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, KINGS COUNTY DISTRICT  
ATTORNEYS OFFICE, NEW YORK CITY  
POLICE OFFICER "SCOTT, NEW YORK CITY  
POLICE OFFICER "AHMED" and NEW YORK CITY  
POLICE OFFICERS "JOHN DOES 1-15", true names  
being unknown at this time,

Defendants.

-----X  
Plaintiff, JAMES WELCOME, by his attorneys, LAW OFFICE OF KENNETH M.  
MOLLINS, P.C., complaining of the Defendants herein, respectfully sets forth and  
alleges as follows, upon information and belief:

**PARTIES**

1. That at all times mentioned herein, Plaintiff, JAMES WELCOME,  
was and still is a resident of the County of Kings, State of New York.
2. That at all times mentioned herein, Defendant, CITY OF NEW YORK is a  
municipality, duly organized and existing under and by virtue of the laws of the State of New  
York, with principal offices located at 1 Centre Street, New York 10007
3. That at all times mentioned herein, Defendant, NEW YORK CITY POLICE  
DEPARTMENT, is a governmental subdivision of the CITY OF NEW ORK, duly organized and  
existing under and by virtue of the laws of the State of New York, with principal offices located

at 1 Centre Street, New York 10007.

4. That at all times mentioned herein, Defendant, KINGS COUNTY DISTRICT ATTORNEYS OFFICE is a municipality, duly organized and existing under and by virtue of the laws of the State of New York, with principal offices located at 350 Jay Street, Brooklyn, New York 11201.

5. That at all times mentioned herein, Defendant, NEW YORK CITY POLICE OFFICER "SCOTT", was and still is a resident of the State of New York.

6. That at all times mentioned herein, Defendant, NEW YORK CITY POLICE OFFICER "AHMED", was and still is a resident of the State of New York.

7. That at all times mentioned herein, Defendants, NEW YORK CITY POLICE OFFICERS "SCOTT" and "AHMED" were employed by the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

8. That at all times mentioned herein, Defendants NEW YORK CITY POLICE OFFICERS "JOHN DOES" 1-15, true names being unknown at this time, were employed by the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

#### **NOTICE OF CLAIM**

9. That on or about the 16<sup>th</sup> day of June 2020, Notice of Claim was duly served upon the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, KINGS COUNTY DISTRICT ATTORNEYS OFFICE, NEW YORK CITY POLICE OFFICER "SCOTT, NEW YORK CITY POLICE OFFICER "AHMED" and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-15", true names being unknown at this time.

10. That said Notice of Claim was duly served upon the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, KINGS COUNTY DISTRICT ATTORNEYS OFFICE, NEW YORK CITY POLICE OFFICER "SCOTT, NEW YORK CITY POLICE OFFICER "AHMED" and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-15", true names being unknown at this time, within ninety (90) days after the injuries and damages hereinafter described were received and/or sustained and/or discovered by the Plaintiff and was served prior to the commencement of this action.

11. That more than thirty (30) days have elapsed since the service of said notice as aforesaid, and the claim remains unpaid and the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, KINGS COUNTY DISTRICT ATTORNEYS OFFICE, NEW YORK CITY POLICE OFFICER "SCOTT, NEW YORK CITY POLICE OFFICER "AHMED" and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-15", true names being unknown at this time, have failed and refused to make any adjustments of the same.

12. The Plaintiff has duly complied with all the conditions necessary to the commencement of this action and has complied with all the provisions of the Laws and Statutes of the City and State of New York in relation thereto.

13. That this action was commenced within one (1) year and ninety (90) days from the date that said cause of action accrued and/or was discovered under CPLR §208.

**AS AND FOR A FIRST CAUSE OF ACTION**

14. That on June 14, 2020, between the hours of 4:00 a.m. and 5:00 a.m. Plaintiff, JAMES WELCOME, was visiting with his daughter's mother, PRESCIOUS, at her residence located at 902 Williams Avenue, Apt. 1D, Brooklyn, County of Kings, State of New York ("Residence").

15. That at the aforesaid time and place and while Plaintiff was visiting with PRESCIOUS, they began arguing and PRESCIOUS called Defendant NEW YORK CITY POLICE DEPARTMENT, and Defendants NEW YORK CITY POLICE OFFICERS "John Doe" and "Jane Doe" arrived at the Residence and upon their arrival, Plaintiff voluntarily left the Residence upon Officers' "John Doe" and "Jane Doe's" suggestion that Plaintiff take a walk.

16. That on the aforesaid date and place, and about 15 – 20 minutes later, Plaintiff, returned to the Residence, another argument ensued, and PRESCIOUS again called Defendants NEW YORK CITY POLICE DEPARTMENT, and Defendant, NEW YORK CITY POLICE OFFICERS "SCOTT" and "AHMED" and "John Does 1-5" arrived and quickly became physical with the Plaintiff, grabbing his arm and ultimately throwing him on the ground.

17. That while Plaintiff was on the ground, the Defendant NEW YORK CITY POLICE OFFICERS "SCOTT" and "AHMED" placed their knees into his back, pushed his head down to the ground, twisted his arms and handcuffed his wrists in an extremely tight manner, cause injuries.

18. NEW YORK CITY POLICE OFFICERS "SCOTT" and "AHMED" then picked Plaintiff off of the floor and dragged Plaintiff out of the Residence by his arms which were cuffed behind his back.

19. Plaintiff was placed into a waiting ambulance and was then taken to Brookdale

Hospital where he was left in the Emergency Room triage room where doctors were waiting; the medical personnel at Brookdale advised Plaintiff the he could go home after sitting for 15 minutes but not receiving any tests or treatment.

20. No charges were ever filed against Plaintiff.

21. That as a result of said attack upon Plaintiff, Plaintiff became sick, sore, lame and disabled; and was injured and bruised in and about his body and limbs; and upon information and belief some of his injuries are of a permanent nature and character and he has expended and become obligated for sums of money for medical care and attention in order to cure his injuries and to alleviate pain and suffering; and will continue to expend and become obligated for sums of money for medical care and attention in order to cure his injuries and to alleviate pain and suffering in the future; and has been incapacitated, and will be incapacitated in the future.

22. That said injuries were the result of an intentional act of assault, battery and brutality of Plaintiff by Defendants, SCOTT and AHMED, who were acting under color of law and with apparent authority bestowed by the Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and KINGS COUNTY DISTRICT ATTORNEYS OFFICE.

23. That the Plaintiff was not contributorily negligent herein.

24. That this action falls within one or more of the exceptions set forth in CPLR §1600 et seq.

25. That as a result of the aforesaid, the Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR A SECOND CAUSE OF ACTION**

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs "1" through "25" inclusive, of this Complaint, as if the same were set forth at length herein.

27. Defendants owed Plaintiff a duty to (i) keep Plaintiff safe from physical harm from another incarcerated individual; (ii) proceed against Plaintiff without any racial motivation or bias; (iii) proceed against Plaintiff under the assumption that Plaintiff is not guilty until proven otherwise; and (iv) not unjustly and falsely imprison Plaintiff without any basis in law or fact.

28. The conduct of Defendants detailed above establishes that Defendants breached the duty owed Plaintiff a duty to (i) keep Plaintiff safe from physical harm from another incarcerated individual; (ii) proceed against Plaintiff without any racial motivation or bias; (iii) proceed against Plaintiff under the assumption that Plaintiff is not guilty until proven otherwise; and (iv) not unjustly and falsely imprison Plaintiff without any basis in law or fact.

29. As a direct and proximate result of Defendants', their agents, servants and/or employees, who were acting under color of law and without apparent authority of the Defendants, breach of the duties owed to Plaintiff, Plaintiff sustained physical, psychological and emotional injuries.

30. That as a result of the aforesaid, the Plaintiff, has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR A THIRD CAUSE OF ACTION**

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "30" inclusive, of this Complaint, as if the same were set forth at length herein.



32. That the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees were negligent, careless and reckless in the hiring and training of their agents, servants and/or employees including Defendants, POLICE OFFICERS "JOHN DOES 1-5" and OFFICERS "SCOTT" and "AHMED" true names being unknown at this time, their agents, servants and/or employees at this time, thereby resulting in the actions of the Defendants' previously set forth.

33. That as a result of the aforesaid, the Plaintiff, has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR A FOURTH CAUSE OF ACTION**

34. Plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "33" inclusive, of this Complaint, as if the same were set forth at length herein.

35. Defendants, their agents, servants and/or employees, acting under color of State Law, denied Plaintiff's due process rights secured under the 14<sup>th</sup> Amendment to the United States Constitution.

36. That the Defendants, violated the Civil Rights Act of 1871, 42 USC Section 1983 and the Bivens Law in addition of other Federal and State Civil Rights Laws.

37. That by reason of the aforesaid, the Plaintiff, is entitled to an award, including Attorneys' fees pursuant to the Civil Rights Attorneys Fees Award Act of 1976, in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

38. That as a result of the aforesaid, the Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR A FIFTH CAUSE OF ACTION**

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "38" inclusive, of this Complaint, as if the same were set forth at length herein.

40. Defendants, their agents, servants and/or employees unlawfully obstructed, interfered and deprived Plaintiff of his freedom of movement.

41. That the Defendants, their agents, servants and/or employees intended to, and did in fact, confine and restrain Plaintiff against his will which confinement and restraint unlawfully obstructed, interfered and deprived Plaintiff of his freedom of movement.

42. Plaintiff was at all times conscious of his unlawful confinement and restraint which wrongfully obstructed, interfered and deprived Plaintiff of his freedom of movement.

43. At no time did Plaintiff willingly consent to his unlawful confinement and restraint which wrongfully obstructed, interfered and deprived Plaintiff of his freedom of movement.

44. Defendants' unlawful confinement and restraint of Plaintiff, which wrongfully obstructed, interfered and deprived Plaintiff of his freedom of movement, was not otherwise privileged.

45. As a direct and proximate result of Defendants' unlawful confinement and restraint of Plaintiff, which wrongfully obstructed, interfered and deprived Plaintiff of his freedom of movement, Plaintiff suffered damages.

46. That as a result of the aforesaid, the Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR A SIXTH CAUSE OF ACTION**

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "46" inclusive, of this Complaint, as if the same were set forth at length herein.

48. Upon information and belief, that at all times hereinafter mentioned, the conduct of Defendants, their agents, servants and/or employees, was of such wanton, willful, egregious, reckless and intentional character as to manifest and evince a callous and reckless disregard for the safety and well-being of others, including Plaintiff, who was caused to sustain the damages as herein described.

49. Plaintiff was not negligent herein.

50. This action falls within one or more of the exceptions set forth in CPLR § 1602.

51. By reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

52. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR AN SEVENTH CAUSE OF ACTION**

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "52" inclusive, of this Complaint, as if the same were set forth at length herein.

54. Defendants, used excessive, unnecessary and unlawful force during the arrest of Plaintiff.

55. The amount of force used by Defendants was objectively unreasonable.

56. As a result of the actions of Defendants, Plaintiff was placed in apprehension of

imminent offensive bodily contact.

57. As a result of Defendants' actions and inactions, an offensive bodily contact occurred against Plaintiff, and Plaintiff sustained physical injuries.

58. The actions of Defendants were willful, intentional, unwarranted, and without just cause or provocation.

59. Plaintiff was targeted by Defendants because of his race and the color of his skin, racially profiled, racially discriminated against, was subjected to great indignity, humiliation, pain and great distress of mind and body.

60. The actions of Defendants violated the rights granted to Plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, Plaintiff seeks relief pursuant to 42 U.S.C. § 1983.

61. The actions of Defendants violated the rights granted to Plaintiff pursuant to Article I, § 12 of the New York State Constitution. As such, Plaintiff seeks relief pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

62. That this action falls within one or more of the exceptions set forth in CPLR § 1602.

63. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

64. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR A EIGHTH CAUSE OF ACTION**

65. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "64" inclusive, of this Complaint, as if the same were set forth at length

herein.

66. Defendants New York City Police Department and the City of New York, by and through their policy makers and their decision makers, acquired knowledge of the conduct of the individual Defendants toward the Plaintiff.

67. The aforesaid policy makers and decision makers of Defendants New York City Police Department and the City of New York approved the acts of its employees, including the acts of the individual Defendants herein.

68. The aforesaid policy makers and decision makers of Defendants New York City Police Department and the City of New York ratified the acts of its employees, including the acts of the individual Defendants herein.

69. The aforesaid policy makers and decision makers of Defendants New York City Police Department and the City of New York adopted the acts of its employees, including the acts of the individual Defendants herein.

70. All of the foregoing occurred as the result of the carelessness and negligence of the individual Defendants.

71. In addition, Defendants New York City Police Department and the City of New York negligently and carelessly failed to adequately hire, train, and supervise its employees, including the individual Defendants herein.

72. As a direct and proximate the result of the foregoing, Plaintiff was subjected to scorn, ridicule, and embarrassment, suffered personal injuries and damages.

73. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

74. That by reason of the foregoing, Plaintiff requests punitive damages in an

amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR THE NINTH CAUSE OF ACTION**

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "74" inclusive, of this Complaint, as if the same were set forth at length herein.

76. The acts of the individual Defendants constituted excessive use of force and physical brutality; they constitute and illustrate a conspiracy to do harm against a private citizen under color of law; the acts were attributable to inadequate training and/or supervision amounting to deliberate indifference and gross negligence on the part of the Defendants New York City Police Department and the City of New York, the acts and the omissions on the part of the Defendants New York City Police Department and the City of New York in testing and accepting employees and in training and supervising them thereafter and in retaining them; they constitute gross negligence, willfulness and deliberate indifference on the part of the Defendants New York City Police Department and the City of New York, their agents, servants, and/or employees, all in violation of the first, fourth, fifth, ninth and fourteenth amendments to the United States Constitution and 42 USC §1983.

77. Claim is made to recover damages for personal injuries sustained by the Plaintiff as a result of the excessive use of force and physical brutality of the individual Defendants.

78. That by reason of the foregoing, Plaintiff has been damaged in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

79. That by reason of the foregoing, Plaintiff requests punitive damages in an amount to be determined by a trier of fact at a trial of the issues set forth herein.

**AS AND FOR TENTH CAUSE OF ACTION**

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "79" inclusive, of this Complaint, as if the same were set forth at length herein.

81. By the aforementioned actions, Defendants discriminated against Plaintiff on the basis of race, color and/or ethnicity in violation of the NYC Human Rights Law § 8-107(1)(a), and in violation of the NYC Human Rights Law and New York State Human Rights Law and other anti-discrimination statutes.

82. By reason of Defendants' aforementioned acts, Plaintiff was targeted because of his race, color of his skin, racially profiled, racially discriminated against, was subjected to bodily injury, great indignity, humiliation, pain and great distress of mind and body and was subjected to scorn and ridicule.

83. The aforesaid acts and conduct by Defendants and their agents and employees, were performed willfully, intentionally, maliciously and with reckless indifference to Plaintiff's protected civil rights.

84. As a result of Defendants' discriminatory treatment of Plaintiff, Plaintiff has sustained physical injuries and severe physical and emotional distress.

85. As a result of Defendants' discriminatory treatment of Plaintiff, Plaintiff has suffered damages, including, without limitation, bodily injuries, emotional pain, suffering, inconvenience, mental anguish and humiliation.

86. The aforesaid occurrence and resulting injuries to Plaintiff were due solely to the recklessness, carelessness and negligence of the Defendants.

87. The aforesaid occurrence took place through no fault or lack of care on the part of Plaintiff contributing thereto.

**WHEREFORE**, Plaintiff demand Judgment against the Defendants, in all the causes of action in an amount to be determined by a trier of fact at a trial, and punitive damages in an amount to be determined at trial of the issues set forth herein, together with the interest, costs and disbursements of this action. The amount prayed for herein exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

Dated: Hauppauge, New York  
December 9, 2020

**LAW OFFICE OF KENNETH M. MOLLINS, P.C.**



**By: KENNETH M. MOLLINS, ESQ.**

Attorneys for Plaintiff

**JAMES WELCOME**

1393 Veterans Memorial Highway

Suite 101S

Hauppauge, New York 11788

(631) 608-4100

File Number: 20200605



STATE OF NEW YORK )  
COUNTY OF SUFFOLK ) :SS.;

I am a Plaintiff in the within action.

James Welcome

  
\_\_\_\_\_  
Notary Public

